

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4-Economic Stability (ES)
	Part No./Name	E-Special Households (FITAP)
	Section No./Name	E-300-FITAP FITAP Special Households (FITAP)
	Document No./Name	E-330-FITAP Domestic Violence
	Effective Date	March 1, 2023

I. STATEMENT OF POLICY

E-331-FITAP - PO DOMESTIC VIOLENCE OPTION

Policies and procedures outlined in this document have been established to:

- Screen individuals applying for and receiving * cash assistance to identify survivors of domestic violence, sexual harassment, sexual assault, and stalking while maintaining the confidentiality of such individuals;
- Refer such individuals to counseling and supportive services; and
- Temporarily waive, after establishing good cause, certain program requirements which would make it more difficult for such individuals to escape domestic violence, sexual harassment, sexual assault, and stalking or unfairly penalize such individuals who are experiencing or have survived such violence, or individuals who are at risk of further violence.

E-332-FITAP - PO DEFINITIONS ***

Domestic violence is physical, sexual, psychological, economical, and/or emotional abuse of an intimate partner in which a partner uses a variety of tactics to gain and maintain power and control over the other partner.

Sexual harassment is hostile, intimidating, or oppressive behavior based on sex that create an offensive environment.

Sexual assault is an umbrella term that includes sexual activities such as rape, fondling, and attempted rape. A victim of sexual assault is an individual who has been subjected to sexual contact or behavior that occurs without the explicit consent of the recipient.

Stalking is engaging in a course of conduct directed toward a specific person that would cause a reasonable person to fear for their safety or the safety of others; or suffer substantial emotional distress. Stalking includes but is not limited to acts which the stalker directly, indirectly, or through third parties by any action, method, device or means:

- follows someone else;
- monitors, observes, or surveils another person;
- threatens another person;
- communicates to or about another person; or
- interferes with a person's property. **

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E-333-FITAP - PO IDENTIFICATION OF VICTIMS OF *** VIOLENCE

* Identifying survivors of violence includes:

- Advising each applicant of the domestic violence **waiver** provisions, and
- Providing the applicant with the [OFS Flyer DV](#) if a manual application is received or if the applicant adds a cash program during an interview.

LITE will indicate those applicants that responded through the Self-Service Portal (SSP) in reference to domestic violence.

E-334-FITAP - PO REFERRAL TO COUNSELING AND SUPPORTIVE SERVICES

Individuals experiencing domestic violence should be referred to contact the Louisiana Domestic Violence Hotline at 1-888-411-1333 for free, confidential 24-hour assistance or the National Domestic Violence Hotline via the nationwide number-1-800-799-SAFE (7233) or TTY 1-800-787-3224 or (206) 518-9361 (Video phone only for deaf callers) during the application process.

Individuals experiencing sexual harassment, sexual assault, or stalking should be referred to contact the Louisiana Sexual Assault Hotline at 1-888-995-7273 or text 225-351-SAFE (7233).

These hotlines will connect the individual with a trained crisis support specialist who can talk with them about their safety, their situation and provide immediate intervention, general support, or can give resources to find long-term support.

Individuals may also be referred to and provided information about available community resources for other types of supportive services. This information is available through the Louisiana 211 Statewide Resource Database (LA 211). The database includes shelters for battered individuals, medical services, abuse hot lines, emergency aid for individuals fleeing violence, legal counseling and advocacy, mental health care, counseling, support groups and financial assistance for survivors of crime.

The Louisiana 211 Statewide Network serves all parishes in Louisiana 24 hours a day, seven days a week, helping residents locate available programs and services to meet their needs. Help seekers simply dial 211 from anywhere in Louisiana to reach a "live" navigation specialist, 24/7. Services are available to non-English speakers.

E-335-FITAP - PO VERIFICATION OF DOMESTIC VIOLENCE

Individuals who wish to claim an exemption from program requirements may submit any available documentation to **verify** their **situation**. ** This may include, but is not limited to:

- Police, government agency, or court records;

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- Documentation from a shelter worker, legal professional, member of the clergy, medical or mental health professional, or other professional from whom the individual has sought assistance in dealing with violence;

- Physical evidence of violence; or
- Other documentation which supports the statement.

If the individual is unable to provide documentation to substantiate the claim, the client's statement **must** be accepted ***. * It is often unsafe for **an individual** to seek an order of protection or other official help. **The** lack of this type of proof alone does not establish that the individual is not a **survivor** of violence.

In no instance should the **perpetrator** be contacted or given any information regarding the **individual's** situation.

E-336-FITAP - PO GOOD CAUSE WAIVER OF PROGRAM REQUIREMENTS

Good cause for a temporary waiver of certain eligibility requirements for victims of violence is established if it is determined that compliance with the requirement would:

- Endanger a family affected by violence;
- Create obstacles for a survivor of violence to escape **the** situation; or
- Unfairly penalize the survivor for past, present and potential abuse.

Individuals who are identified to be **survivors** shall be advised that certain eligibility requirements may be temporarily waived upon a determination of good cause for such a waiver. With the individual's consent, the worker shall determine whether good cause exists for a waiver of a program requirement(s). An individual is free to decline an offer of a waiver, or terminate an existing waiver at any time.

E-337-FITAP - PO SPECIFIC PROGRAM REQUIREMENTS WHICH MAY BE WAIVED

Staff shall waive or modify program requirements if the requirement makes it more difficult for the individual to escape violence or places them at risk of further violence. Not every client experiencing or surviving violence will need to have program requirements waived; it is a case-by-case

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determination. Consider the family's current situation and their plan for achieving self-sufficiency when determining whether a waiver of program requirements is appropriate for reasons of violence. **

Program requirements which may be temporarily waived include but are not limited to:

- STEP participation requirement

Non-compliance with work activities may occur frequently in households affected by violence and could be the result of attempts by the * perpetrator to control the actions of the individual. Although an individual's behaviors may appear to be non-compliant, they could indicate that a client has good cause and warrant further investigation.

A client may be excused from STEP activities if:

- The client has physical injuries caused by abuse or psychological effects of abuse which prohibit working; or
- A work activity is disrupted due to violence, including civil or criminal legal proceedings; or
- The abuser actively interferes with the client's work activity, attendance at work activities or child care arrangements; or
- A work activity location puts the client at risk of further violence; or
- Other circumstances that prevent the client from participating, such as but not limited to:
 - Sabotaging child care arrangements (This may include failing to watch the children as agreed or harassing babysitters),
 - Calling the work site and telling lies about the individual,
 - Verbally harassing the individual at work by telephone or in person,
 - Destroying or hiding clothes needed for classes, interviews, or work,
 - Keeping the individual up all night before interviews or tests,
 - Restricting access to family transportation, or
 - Turning off the alarm clock, etc. **

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- Time-Limited Benefits

Cash benefits for the family may continue after expiration of the 24 or 60-month time-limit if it is established that the * **circumstances resulting from the violence** result in the client's inability to be self-sufficient.

- Child Support **Enforcement (CSE)** or Paternity Establishment Cooperation Requirements

Survivors of violence may be excused from cooperation with CSE once good cause has been established if giving information about the noncustodial parent or starting a paternity or child support case might put the individual or their children in further danger of physical, emotional, or sexual abuse. However, the requirement should not be waived if the client wishes to pursue child support.

- Residency

The residency requirement may be waived for a client who is temporarily residing in Louisiana to escape a domestic violence situation.

E-338-FITAP - PO PROGRAM REQUIREMENTS WHICH MAY NOT BE WAIVED

Program requirements which may not be waived include:

- Income requirements; or
- Relationship and living in the home requirements.

E-339-FITAP - PO PRIVACY PROTECTION

Assure that all confidentiality provisions outlined in Chapter 7, Part E are strictly adhered to and advise the client of these protections:

- Inform the client that disclosure of information regarding violence is strictly voluntary;
- Assure the client that in no circumstances will the **perpetrator** be contacted; and
- Advise the client that it is not necessary that **their** geographical residence be entered **in LITE ****. The client may use an alternate mailing address which may be the local DCFS office address.

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II. PROCEDURES

E-331-FITAP – PR DOMESTIC VIOLENCE OPTION

There are no procedures with this policy.

E-332-FITAP – PR DEFINITIONS ***

There are no procedures with this policy.

E-333-FITAP – PR IDENTIFICATION OF VICTIMS OF *** VIOLENCE

The primary means of identification of * survivors of violence is a question on the application form. Completion of this question is optional and is not required to establish the existence of violence.

Survivors may also be identified during the interview process. The worker should attempt to obtain a verbal response to this question in situations where the client has failed to complete the question on the application form.

In LITE, on the 'Household Information' screen, scroll to the center of the page to the section header, 'OFS Flyer DV: Notification of Right to Claim Good Cause' and review questions with the client for an appropriate response. **

FITAP/KCSP FLYER DV AND 6A DETAILS

OFS Flyer DV: Notification of Right to Claim Good Cause

Click [here](#) for Flyer DV.

Applicant read OFS Flyer DV in Self-Service Portal (SSP):

No

Has the OFS Flyer DV been reviewed with the client?

Yes

Does the applicant/recipient wish to claim a family violence exemption?

No

OFS Flyer DV Signature Received?

Yes- Signature Received

Date OFS Flyer DV Signature Received:

06 / 14 / 2022

Domestic Violence Type(s):

Emotional or verbal abuse
Coercion, isolation, and intimidation
Economic abuse
Physical or sexual abuse

Domestic Violence Verification:

Domestic Violence Waiver Decision:

Domestic Violence Waiver Approval(s):

Work Requirements
Time-limited Benefits
Child Support Enforcement
Residency

Waiver Start Date:

MM / DD / YYYY

Waiver End Date:

MM / DD / YYYY

Supervisor Approval?

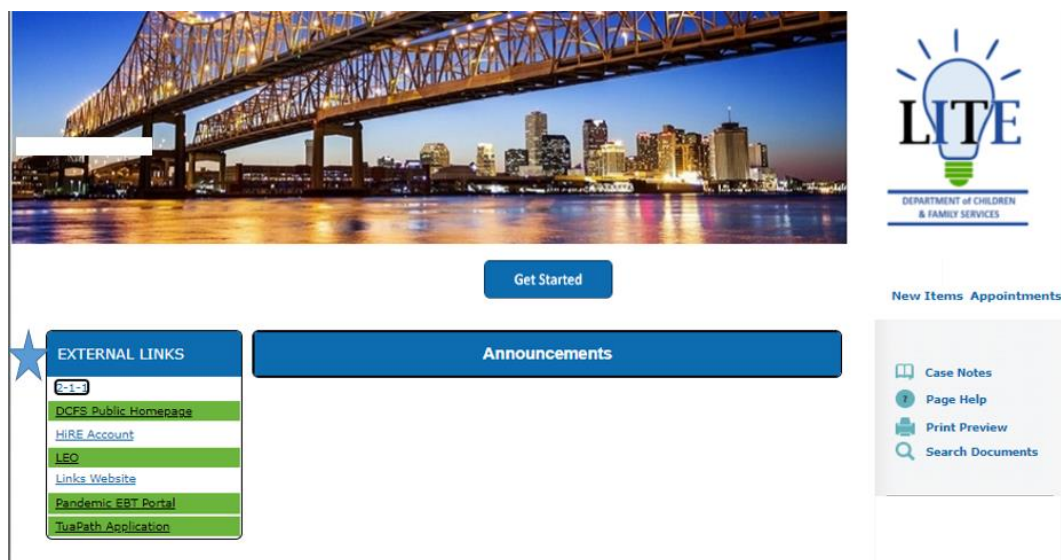
The worker should be alert for and follow up on any statement made by the client that could be an indication of the existence of violence.

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The worker should also be alert for and follow up on other indications of violence including signs of physical abuse or statements made by household and family members or knowledgeable third parties, etc.

E-334-FITAP – PR REFERRAL TO COUNSELING AND SUPPORTIVE SERVICES

* Workers may access the 211 resource on the home page of LITE to refer a survivor of violence for supportive services. Support could be in the form of a referral to shelters for battered individuals, medical services, abuse hot lines, emergency aid for individuals fleeing violence, legal counseling and advocacy, mental health care, counseling, support groups and financial assistance for victims of crime.



E-335-FITAP – PR VERIFICATION OF DOMESTIC VIOLENCE

In LITE, on the '*Person Demographics-Details*' screen, scroll to the bottom of the page to the section header, 'FITAP/KCSP DEMOGRAPHIC INFORMATION' and review the applicable questions with the client for an appropriate response. **

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FITAP/KCSP DEMOGRAPHIC INFORMATION

Is this individual a victim of domestic violence? No

If this person is exempt from STEP participation are they currently participating?

Domestic Violence Verification:

Does the qualified relative have custody of this child?

Type of custody:

Date Document was executed: MM / DD / YYYY

Date Document Expires: MM / DD / YYYY

Verification of Custody:

Absent Parent Factor:

Absent Parent Factor Verification:

Death of Absent Parent Verification:

Legal Status:

Reset Screen

PREVIOUS CANCEL CONTINUE

* For the *Domestic Violence Verification* question, from the drop down menu choose the type of verification provided by the client. If the worker needs to request documentation, choose the option, *'Pending verification'*. This option will engage LITE to send out correspondence for a request of the desired documentation. **

FITAP/KCSP DEMOGRAPHIC INFORMATION

Is this individual a victim of domestic violence? No

If this person is exempt from STEP participation are they currently participating?

Domestic Violence Verification:

Does the qualified relative have custody of this child?

Type of custody:

Date Document was executed:

Date Document Expires:

Verification of Custody:

Absent Parent Factor:

Absent Parent Factor Verification:

Death of Absent Parent Verification:

Legal Status:

Reset Screen

PREVIOUS CANCEL CONTINUE

Police, government agency, court records
Domestic violence shelter documentation
Medical/mental health professional documentation
Legal professional, clergy, other professional documentation
Physical evidence of domestic violence
Collateral statement from witness
Client statement (documentation unavailable)
Pending verification
Conversion Value

Continued absence
Death
Incapacity
Institutionalization/incarceration

Add Case Notes
Case Notes
Page Help
Print Preview
Search Documents
Clearance Summary
Deferred CR

CPCS
Mon December 05, 2022

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E-336-FITAP – PR GOOD CAUSE WAIVER OF PROGRAM REQUIREMENTS

Good Cause waiver of program requirements may be * **approved** for up to six months at a time and may be renewed if needed. The length of each waiver should reflect the worker's individualized determination of the time needed by the client to overcome the barriers created by the situation. This may be for less than six months.

Waiver of program requirements for victims of violence are determined by the worker and approved by the supervisor. Questionable cases are referred to the Regional Program Consultant for review.

All Domestic Violence Waiver decisions must be entered on the '*Household Information*' screen. The type of waiver (i.e. Work Requirements, Time-Limited Benefits, CSE, or Residency.) approved will determine which alternate screens will also require updating in LITE. **

Initiate Data Collection
Individual Information
Household Information
Non-Custodial Parent
Others ^

Household Information

CASE INFORMATION

Application Date: 04/05/2021

Source: Self Service

FITAP/KCSP FLYER DV AND 6A DETAILS

OFS Flyer DV: Notification of Right to Claim Good Cause

Click [here](#) for Flyer DV.

Applicant read OFS Flyer DV in Self-Service Portal (SSP): No

Has the OFS Flyer DV been reviewed with the client? Yes

Does the applicant/recipient wish to claim a family violence exemption? No

OFS Flyer DV Signature Received? Yes- Signature Received

Date OFS Flyer DV Signature Received: 06 / 14 / 2022

Domestic Violence Type(s):
Domestic Violence Verification:
Domestic Violence Waiver Decision:
Domestic Violence Waiver Approval(s):
Waiver Start Date:
Waiver End Date:
Supervisor Approval?

Emotional or verbal abuse
Coercion, isolation, and intimidation
Economic abuse
Physical or sexual abuse

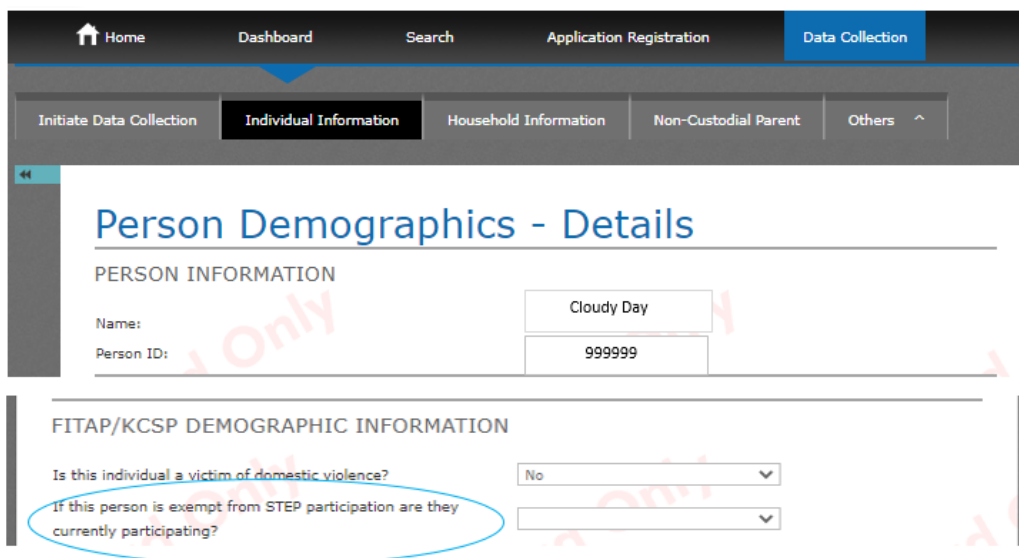
Work Requirements
Time-limited Benefits
Child Support Enforcement
Residency

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E-337-FITAP – PR SPECIFIC PROGRAM REQUIREMENTS WHICH MAY BE WAIVED

* **Work Requirement**

An approved Work Requirement waiver will also require completion of the 'Person Demographics-Details' screen.



Home Dashboard Search Application Registration **Data Collection**

Initiate Data Collection **Individual Information** Household Information Non-Custodial Parent Others ^

Person Demographics - Details

PERSON INFORMATION

Name: Cloudy Day

Person ID: 999999

FITAP/KCSP DEMOGRAPHIC INFORMATION

Is this individual a victim of domestic violence? No

If this person is exempt from STEP participation are they currently participating?

Child Support Enforcement (CSE)

An approved CSE waiver will also require completion of the *Non-Custodial Parent – Child Connection* section located under the Non-Custodial Parent tab. **

Non-Custodial Parent - Child Connection

CHILD CONNECTION INFORMATION

NCP Name: Smokey Wind

NCP SSN:

CHILD INFORMATION

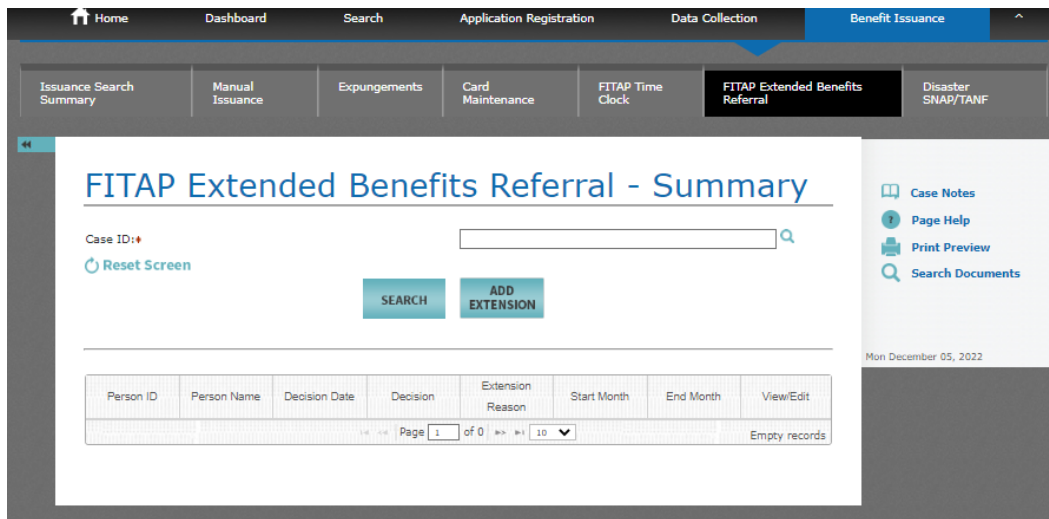
Child Name	Custodial Parent Name	Paternity Established	Good Cause Reason	Good Cause Determination	Medical Coverage	Delete
Happy Day 16F	Cloudy Day 40F	Yes- paternity established	Not claimed			

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* **Time-Limited Benefits**

An approved Time-Limited Benefits waiver will also require completion of the '*FITAP Extended Benefits Referral-Summary*' screen. From the Benefit Issuance Sub-Navigation Bar, click FITAP Extended Benefits Referral.



Click Search. The *FITAP Extended Benefits Referral – Summary* search results display. Click Add Extension to add a FITAP Extension Benefit Period. The FITAP Time Limit Decision – Details screen displays. **

FITAP Time Limit Decision - Details

PERSON INFORMATION

Person Name: *

Person ID:

DECISION DETAILS

24 Month Time Clock Counter State: 0

60 Month Time Clock Counter Federal: 0

Benefit Month: 2/2023

Decision Date: * / /

Decision: *

Denial Reason:

Extension Reason:

Start Month: * /

End Month: * /

Staff ID: jstarns

Date: 02/14/2023 11:29 AM

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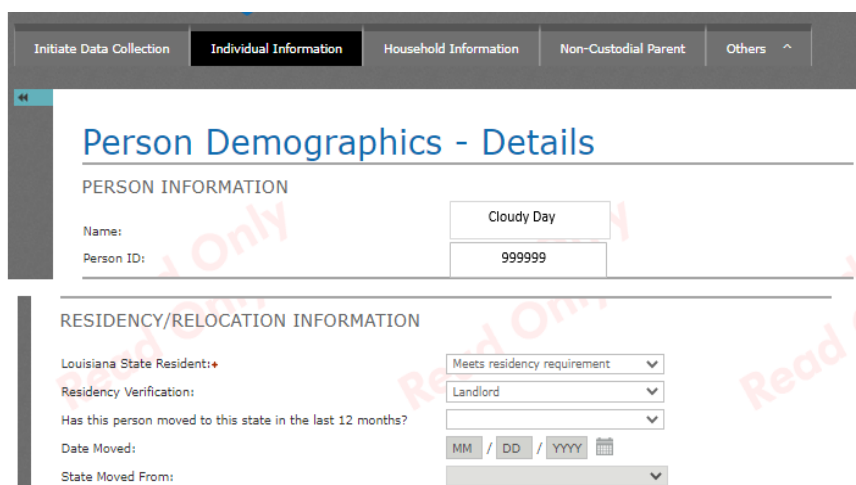
* The *FITAP Time Limit Decision – Details* screen allows the worker to create an extension request for approval. Complete the sections of the *FITAP Time Limit Decision – Details* screen.

The Decision type will be 'Approve'. The Extension Reason type will be 'Hardship'. The Waiver Start Date and Waiver End Dates will be entered in the Start Month and End Month fields.

The Supervisor will receive a task to review and approve the Time Limit extension decision.

Residency

An approved Residency waiver will also require completion of the '*Person Demographics – Details*' screen indicating that the residency requirement has been met. **



E-338-FITAP – PR PROGRAM REQUIREMENTS WHICH MAY NOT BE WAIVED

There are no procedures with this policy.

E-339-FITAP – PR PRIVACY PROTECTION

There are no procedures with this policy.

III. FORMS AND INSTRUCTIONS

[OFS Flyer DV Form](#) / [Instructions Notification of Right to Claim Good Cause](#)

IV. REFERENCES

[7CFR 273.11](#)